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February 25, 2025

SENATE BILL NO. 381

By: Bullard of the Senate

and

Steagall of the House

An Act relating to firearms; amending 21 O.S. 2021, Section 1283, as amended by Section 1, Chapter 299, O.S.L. 2022 (21 O.S. Supp. 2024, Section 1283), which relates to convicted felons and delinquents; modifying provisions related to firearms in certain vehicles; restoring certain rights to carry; prohibiting certain carry for certain persons; modifying provisions related to firearms in certain residences; updating statutory language; updating statutory references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1283, as amended by Section 1, Chapter 299, O.S.L. 2022 (21 O.S. Supp. 2024, Section 1283), is amended to read as follows:

Section 1283.

CONVICTED FELONS AND DELINQUENTS

A. Except as provided in ~~subsection~~ subsections B and C of this section, it shall be unlawful for any person convicted of any felony in any court of this state or of another state or of the United

1 States to have in his or her possession or under his or her
2 immediate control, ~~or in any vehicle which the person is operating,~~
3 or at the residence where the convicted person resides, any pistol,
4 imitation or homemade pistol, altered air or toy pistol, machine
5 gun, sawed-off shotgun or sawed-off rifle, or any other firearm.

6 B. Any person who has previously been convicted of a nonviolent
7 felony in any court of this state or of another state or of the
8 United States, and who has received a full and complete pardon from
9 the proper authority and has not been convicted of any other felony
10 offense which has not been pardoned, shall have restored the right
11 to possess any firearm or other weapon prohibited by subsection A of
12 this section, the right to apply for and carry a handgun, concealed
13 or unconcealed, pursuant to the provisions of the Oklahoma Self-
14 Defense Act or as otherwise permitted by law, and have the right to
15 perform the duties of a ~~peace officer,~~ gunsmith, ~~and for firearms~~
16 ~~repair~~ any other profession that requires possession, carry, or
17 transportation of a firearm.

18 C. 1. Any person who:

19 a. has previously been convicted of a nonviolent felony,
20 and

21 b. has completed the entirety of the sentence imposed for
22 the offense and has had no additional misdemeanor or
23 felony convictions or charges pending for a period of
24 five (5) years since the completion of the sentence,

1 shall have restored the right to possess, carry, or transport any
2 non-semi-automatic firearm, may apply for and carry a handgun,
3 concealed or unconcealed, pursuant to the provisions of the Oklahoma
4 Self-Defense Act or as otherwise permitted by law, and shall have
5 the right to perform any other duty that requires possession, carry,
6 or transportation of a firearm.

7 2. A person who has such rights restored pursuant to this
8 subsection shall have those rights forfeited upon conviction of a
9 subsequent misdemeanor or felony violation.

10 3. A person convicted of any of the following nonviolent felony
11 offenses shall not be eligible to have such rights restored as
12 provided for in this subsection:

13 a. child endangerment, as provided for in Section 852.1
14 of this title,

15 b. domestic abuse, domestic abuse of a pregnant woman,
16 domestic abuse in the presence of a child, or domestic
17 abuse resulting in great bodily injury, as provided
18 for in Section 644 of this title,

19 c. incest, as provided for in Section 885 of this title,

20 d. indecent exposure, as provided for in Section 1021 of
21 this title,

22 e. sexual assault, as provided for in Section 112 of this
23 title,

1 f. stalking, as provided for in Section 1173 of this
2 title,

3 g. violations of a protective order, as provided for in
4 Section 1173 of this title and Section 60.6 of Title
5 22 of the Oklahoma Statutes, or

6 h. violations of the Sex Offenders Registration Act, as
7 provided for in Sections 587, 590, and 590.1 of Title
8 57 of the Oklahoma Statutes.

9 D. It shall be unlawful for any person serving a term of
10 probation for any felony in any court of this state or of another
11 state or of the United States or under the jurisdiction of any
12 alternative court program to have in his or her possession or under
13 his or her immediate control, or at his or her residence, or in any
14 passenger vehicle which the person is operating, any pistol,
15 shotgun, or rifle including any imitation or homemade pistol,
16 altered air or toy pistol, toy shotgun, or toy rifle, while such
17 person is subject to supervision, probation, parole, or inmate
18 status.

19 ~~D.~~ E. It shall be unlawful for any person previously
20 adjudicated as a delinquent child or a youthful offender for the
21 commission of an offense, which would have constituted a felony
22 offense if committed by an adult, to have in the possession of the
23 person or under the immediate control of the person, or have in any
24 vehicle which he or she is driving, ~~or at the residence of the~~

1 ~~person,~~ any pistol, imitation or homemade pistol, altered air or toy
2 pistol, machine gun, sawed-off shotgun or sawed-off rifle, or any
3 other dangerous or deadly firearm within ten (10) years after such
4 adjudication; provided, that nothing in this subsection shall be
5 construed to prohibit the placement of the person in a home with a
6 full-time duly appointed peace officer who is certified by the
7 Council on Law Enforcement Education and Training (CLEET) pursuant
8 to the provisions of Section 3311 of Title 70 of the Oklahoma
9 Statutes.

10 ~~E.~~ F. It shall be unlawful for any person who is an alien
11 illegally or unlawfully in the United States to have in the
12 possession of the person or under the immediate control of the
13 person, or in any vehicle the person is operating, or at the
14 residence where the person resides, any pistol, imitation or
15 homemade pistol, altered air or toy pistol, shotgun, rifle, or any
16 other dangerous or deadly firearm; provided, that nothing in this
17 subsection applies to prohibit the transport or detention of the
18 person by law enforcement officers or federal immigration
19 authorities. Any person who violates the provisions of this
20 subsection shall, upon conviction, be guilty of a misdemeanor
21 punishable by a fine of Two Hundred Fifty Dollars (\$250.00).

22 ~~F.~~ G. Any person having been issued a handgun license pursuant
23 to the provisions of the Oklahoma Self-Defense Act and who knowingly
24 or intentionally allows a convicted felon or adjudicated delinquent

1 or a youthful offender as prohibited by the provisions of subsection
2 A, ~~C~~, D, or ~~D~~ E of this section to possess or have control of any
3 firearm authorized by the Oklahoma Self-Defense Act shall, upon
4 conviction, be guilty of a felony punishable by a fine not to exceed
5 Five Thousand Dollars (\$5,000.00). In addition, the person shall
6 have the handgun license revoked by the Oklahoma State Bureau of
7 Investigation after a hearing and determination that the person has
8 violated the provisions of this section.

9 ~~G~~. H. Any convicted or adjudicated person violating the
10 provisions of this section shall, upon conviction, be guilty of a
11 felony punishable as provided in Section 1284 of this title.

12 ~~H~~. I. For purposes of this section, ~~"sawed-off shotgun":~~

13 1. "Sawed-off shotgun" or "sawed-off rifle" shall mean means
14 any shotgun or rifle of which the barrel or barrels have been
15 illegally shortened in length.

16 ~~I. For purposes of this section, "altered toy pistol" shall~~
17 ~~mean;~~

18 2. "Altered-toy pistol" means any toy weapon which has been
19 altered from its original manufactured state to resemble a real
20 weapon.

21 ~~J. For purposes of this section, "altered air pistol" shall~~
22 ~~mean;~~

1 3. "Altered air pistol" means any air pistol manufactured to
2 propel projectiles by air pressure which has been altered from its
3 original manufactured state.

4 ~~K. For purposes of this section, "alternative court program"~~
5 ~~shall mean; and~~

6 4. "Alternative court program" means any drug court, Anna
7 McBride or mental health court, DUI court, or veterans court.

8 SECTION 2. This act shall become effective November 1, 2025.

9 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
10 February 25, 2025 - DO PASS